

Council Meeting
February 10, 2021
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The Claremont City Council held a meeting on Wednesday, February 10, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar by telephone:

1-646-558-8656

Webinar ID: 879 1605 6352

Passcode: 739587

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Dale Girard – home, alone

At-Large Councilor Erica Sweetser – Council Chambers, Councilor Stone

Assistant Mayor Allen Damren – home, alone

Mayor Charlene Lovett – daughter's apartment, alone

At-Large Councilor Debora Matteau – home, alone

At-Large Councilor Nicholas Koloski – work, alone

Ward II Councilor James Contois – home, alone

Ward III Councilor Jonathan Stone – Council Chambers, Councilor Sweetser

Also present:

Edward Morris, City Manager

Mary Walter, Finance Director

AGENDA CHANGES

The majority of the Council agreed to move the Non-Public Session for Personnel to the February 24th Council meeting.

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to accept the minutes of the January 13, 2021, City Council meeting.

Councilor O'Hearne asked to move approval of this and the January 27th minutes to the next Council meeting as he has changes for both minutes, but he hasn't quite got the wording down, because it has been a busy week.

Councilor Matteau withdrew her motion and Assistant Mayor Damren withdrew his second.

MAYOR'S NOTES

Mayor Lovett said a group of National Guard people from Claremont are being deployed to the United Arab Emirates until November.

Mayor Lovett said the NH Food Bank mobile food drive will be at the Runnings parking lot February 16, 12 noon-2 p.m.

Councilor Koloski noted that all the City Department Heads had logged in to the meeting tonight. He asked to have a discussion about that. He said he had personally requested that the Finance Director be in attendance, but as far as all the other Department Heads, he doesn't think it is fair to require they attend all Council meetings. Councilor O'Hearne suggested having them at the first meeting of the month in order to answer questions.

Councilor Contois said the deployment of two Claremont Police Officers is a big deal and he asked if the City's webpage and Facebook page would include an address where people can write to them and to also let the families know that we're here to support them.

Councilors agreed that Ms. Walter should attend Council meetings. Councilors agreed Department Heads should stay on the meeting tonight until after the Department Reports are discussed. Mayor Lovett said the regular attendance of Department Heads can be ironed out at the 24th meeting with the City Manager.

CITY MANAGER'S REPORT

Mr. Morris apologized to the Council for not providing City employee pay information asked for prior to the January 13th Council meeting, and for the back-and-forth discussion at that meeting. Also, he apologized for any feelings that he was trying to hide the full cost of Merit Plan raises; that was not his intention. He has provided the Council with the information requested.

- **Moose Plate Grant** – The Claremont Opera House has received a second Moose Plate Grant in the amount of \$20,000. This will allow for repair of more stained-glass windows than was originally planned for. He thanked the Opera House Board and Executive Director for their initiative and willingness to partner with the City to restore and maintain this historic building.

- **Cathole Discussion** – The Planning and Development Department is coordinating a meeting between the Conservation Commission and the Parks and Recreation Commission to discuss recommendations for the long-term plan of the Cat Hole lands owned by the City. This meeting will be scheduled in late February or early March.
- **Source Water Protection Grant** – The City has been approved for a \$20,000 NHDES water source protection grant to install source water protection information kiosks at all three reservoirs.
- **Code Enforcement Update** – You can find on Planning and Development Director Merrill's monthly report that code enforcement has three court actions pending, the one for building code violations, is in Superior Court. The City is also taking action against two property owners for trash accumulation (in District Court). In the past few weeks, the building inspector has issued citations totaling \$1,200 for non-permitted work.
- **SBA Webinar** – The Small Business Administration has partnered with the City of Claremont's Development Department and the Greater Claremont Chamber of Commerce to host a webinar for Claremont businesses on the PPP (Paycheck Protection Program) and the EIDL (Economic Injury Disaster Loan) programs. This webinar will be on February 22, 2021 at 12:00 p.m. via ZOOM.
- **COVID-19 Update** – At the time this report was written, the State of New Hampshire's active COVID cases continue to decline, with a current daily positivity rate of 532, down from 759 new cases per day. During this same timeframe, new cases in Sullivan County have stayed about the same with an average of about 22 new cases per day. The City of Claremont currently has 69 active cases. Over the past week, Claremont's cases have bounced from 62 cases per day up into the 80's, and then back down to the current 69 cases.

Yesterday's number was 52, and we are currently at 47.

The good news is the infection rate in Sullivan County has continued to drop to the current infection rate of .84.

Vaccinations:

Fire Chief Bryan Burr continues to stay in regular communication with the State of New Hampshire and our regional health network to monitor and help with the vaccination effort. Claremont Firefighters that are trained to the Advanced EMT level or higher have been assisting at the vaccination site. The Fire Department is also working with State and regional partners to create a mobile vaccination unit to help bring vaccinations to sites such as the Bourdon Center and Marion Phillips Apartments.

We are in the final phases of having our first responders vaccinated. New Hampshire is currently in vaccination stage 1b which allows those at high medical risk, and certain professions to register to get their vaccinations at www.vaccines.nh.gov or by calling 211. If residents have any concerns or issues, they can call 211.

Mr. Morris said City Staff is starting to work on the budget. Because May 2nd is a Sunday, the budget will be sent to the Council no later than April 30.

Regarding the Fire Department Report, Councilor Contois said that if Claremonters need help getting smoke detectors, to please contact the Fire Department.

Councilor O’Hearne asked Police Chief Mark Chase when the new Deputy Chief would be introduced to the Council. Chief Chase said the Deputy’s priority has been to meet the Police Department employees, and he’s been on ride-alongs. He will be introduced to the Council at a future meeting, before the budget meeting.

Councilor O’Hearne asked about current staffing of Merit Plan employees in the Police Department. Chief Chase said other than part-time employees, there are two Merit Plan employees in the Police agency, himself and the Deputy; and there is one full-time Merit Plan employee in the Communications agency.

Mayor Lovett noted there was a Donation Report in the Council packet with a total of \$13,376.

APPOINTMENT TO BOARDS AND COMMITTEES

Electric Aggregation Committee – City Council Representative

Mayor Lovett volunteered to sit on seat 1 (City Council Representative) of the Electric Aggregation Committee.

Claremont Community Television Board of Directors – City Council Representative

Councilor O’Hearne volunteered to continue to sit on seat 1 (City Council Representative) Claremont Community Television Board of Directors – City Council Representative.

Policy Committee

A motion was made by Assistant Mayor Damren and seconded by Councilor Koloski to appoint Michael Demars to seat 4 of the Policy Committee.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Zoning Board of Adjustment

A motion was made by Councilor Koloski and seconded by Councilor O’Hearne to appoint Carolyn Towle to seat 5 of the Zoning Board of Adjustment.

Roll call vote:
O’Hearne - yes
Girard - yes
Sweetser - no
Damren - no
Matteau - no
Koloski - yes
Contois - no
Stone - no
Lovett - no
Motion failed 3-6.

A motion was made by Councilor Matteau and seconded by Councilor Sweetser to appoint Michael Lemieux to seat 5 of the Zoning Board of Adjustment.

Roll call vote:
O’Hearne - no
Girard - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-1.

CITIZEN’S FORUM

Reb MacKenzie said there are a couple of seats open on the Energy Advisory Committee. She thanked Mayor Lovett and Councilor Sweetser for their participation. There are two seats available on the Electric Aggregation Committee. There is a hearing scheduled on Friday for the Electric Aggregation, RSA 53-E. Also, there are letters to the editors of the Eagle Times and Valley News to draw people to the correct website to oppose HB315. Ms. MacKenzie was encouraged to hear that the CDC has said once people have received both vaccines, and if they

are exposed to COVID-19, they won't need to quarantine. She virtually sent out a "valentine" to the City Council, City Staff, all frontline workers in hospitals, doctors' offices, grocery stores, and gas stations; they are appreciated.

OLD BUSINESS

Legislative Update

Regarding boards and committees, **a motion was made by Councilor Koloski and seconded by Councilor Stone to suspend the Finance Committee until such time that two citizens come forward and are appointed by the Council.**

Councilors had a discussion about the lack of Finance Committee minutes on the City's website. Without citizens on the committee, the Finance Committee appears to be an extension of the Council.

A motion was made by Assistant Mayor Damren and seconded by Mayor Lovett to move the question.

Roll call vote to move the question:

O'Hearne - no

Girard - no

Sweetser - no

Damren - yes

Matteau - yes

Koloski - no

Contois - no

Stone - no

Lovett - yes

Motion failed 3-6.

There was continued discussion about minutes.

Roll call vote to suspend the Finance Committee:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Mayor Lovett talked about the Mayors' Roundtable and the interest in tiny homes, but that people want local control.

Councilors had a brief discussion with the suggestion to make it an agenda item, however, Mayor Lovett said by the time it came back to the Council, it could be a done deal.

Councilors were in agreement with any expansion of RSA 79-E as it gives more options for development.

Revenue Shortfalls/Cost Downshifting – HB390, committee's recommendation is inexpedient to legislate.

Mayor Lovett said two bills regarding NH Retirement System is the 5% or 15% contribution from the state to offset the employer's burden to the NH Retirement System. Council is in favor of either of these.

Mayor Lovett said regarding HB315 Community Power Aggregation – at the last meeting, Council agreed to be in opposition.

Mayor Lovett HB439 – Council opposed. All city Mayors are opposed.

Mayor Lovett talked about other bills:

- HB888, Representative O'Hearne sponsored. Councilor O'Hearne said there was a hearing Monday.
- SB99 Meals & Rooms tax. If the City had received its full share since 2011 to present, it would have been just under \$5 million. She and the City Manager testified on Monday.
- HB106 & SB109, Expansion of Net Metering, has gotten bipartisan support. Council supported. Opens the door for the City to better utilize its own generated power (i.e. solar). Council in support.

Councilor Contois, regarding HB315, asked the public to go to the General Court website to oppose it.

Councilor Sweetser pointed out that the Rooms & Meals Tax of \$5 million over 10 years would have reduced Claremont's tax rate by 50 cents per year.

Councilor Contois would like to see a resolution from this Council regarding CACR4, HB121 and SB80, fair and nonpartisan redistricting.

Pleasant Street Update

Planning and Development Director Nancy Merrill introduced Brian Coburn. She said two public meetings for Pleasant Street were held on September 15 and December 17.

Brian Coburn highlighted some of the changes.

- Got rid of multi-colored crosswalk. Will use a myriad of colors in the seating to portray openness of the community.
- Brick accent added
- Contemporary style lights
- Around trees colored concrete seating;
- In alley of Daddy's Pizza, provide lighting & mural
- Gave an example of some of the plantings.
- Expect to break ground on the project this summer.

Councilors asked questions and Mr. Coburn responded:

- Crosswalks require two white lines, but color can be put between them or you can stamp a brick pattern between the lines.
- Using engineered soil so the tree roots grow down instead of pushing up the bricks.
- Leaning toward working one side of the street at a time.
- There will be discussions with property owners regarding outside seating.
- All City-owned seating will have removable anchors, except some of the large concrete boxes

Lead Update

Mayor Lovett said as of July 1 this year, the threshold will be lowered to 5 mcg per deciliter which matches CDC guidelines. Sullivan County is to receive \$1.7 million for lead remediation.

Mr. Morris said a question had been received about what the City's building inspectors can/cannot do regarding lead. Steve Coombs, Chief Building Inspector, said that they educate contractors and owners on the laws. They are working to make people aware that they are responsible to follow RRP (Renovation, Repair and Painting) Program rules. A grant has been received and the City is working to set up an RRP certification program. Ms. Merrill said there will be training set up at Sugar River Valley Regional Training Center for the building trades students.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to remove the 2.5% discussion off the table. [This was in reference to Funds Transfer (Compensation).]

Councilors agreed to move Council Goals Discussion to the end of New Business.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - abstain

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, with 1 abstain.

It was moved to the end of New Business.

NEW BUSINESS

Mask Donation from Claremont-Sugar River Rotary Club

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to accept with sincere appreciation a donation from Claremont-Sugar River Rotary of 2,800 (1,200 surgical, 1,500 N95 adult, and 100 N95 child) masks, valued at \$560.00, for the Claremont Fire Department.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-23 Energy Lighting Audit & Proposal – Municipal Buildings – Public Hearing

WHEREAS, an Energy Audit was prepared by World Energy Efficiency Standards at no cost to the City in September 2020; and

WHEREAS, the City wishes to incorporate its recommendations for energy efficiency; and

NOW, THEREFORE, BE IT RESOLVED, in order to become more energy efficient, the City wishes to convert lights in the Visitor Center, City Hall and Fire Station, and Fiske Free Library to LED; and

BE IT FURTHER RESOLVED that the cost of the project will be \$102,379.70 with Eversource providing an incentive of \$51,191.76; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$102,379.70 with the City providing \$51,187.94 from fund balance; with the remaining \$51,191.76 coming from Eversource's NH Saves incentive and;

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents related to this resolution.

Mr. Morris said a lighting audit was done last fall of the Library, Visitors Center, City Hall and the Fire Department buildings.

Ms. Merrill said this is part of Eversource's NH Saves Program. The lighting audit was done at no cost to the City. This will convert all lights to LED. Claremont Savings Bank Community Center and Public Works were done previously. The payback is expected to be 2.5-2.7 years. Savings over two years is about \$200,000.

A motion was made by Councilor Contois and seconded by Councilor Koloski to adopt Resolution 2021-23 Energy Lighting Audit & Proposal – Municipal Buildings.

Councilor Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-24 \$1,000 New England Grass Roots Fund Grant for Conservation
Commission Public Education Programs – Public Hearing

WHEREAS the Conservation Commission desires to encourage conservation education through public programs and speakers; and

WHEREAS, the Conservation Commission intends to apply for a New England Grass Roots Fund Grant in the total amount of up to \$1000.00; and

WHEREAS, the Conservation Commission is authorized under NH RSA 36-A:4 to receive grant funds subject to the approval of the City Council;

WHEREAS, the Conservation Commission now desires authorization to apply for said grant and, if awarded, to accept and expend the grant funds to provide conservation education through public programs and speakers;

NOW THEREFORE BE IT RESOLVED THAT the City Council hereby authorizes the Conservation Commission, city manager, or his designees, to take such actions as may be necessary to apply to the New England Grass Roots Fund for an amount up to \$1000.00; and

BE IT FURTHER RESOLVED THAT in the event the Conservation Commission is awarded this grant, the City Council hereby authorizes the Conservation Commission to accept and expend the grant funds; and

BE IT FURTHER RESOLVED that the Conservation Commission, city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to adopt Resolution 2021-24 \$1,000 New England Grass Roots Fund Grant for Conservation Commission Public Education Programs.

Councilor Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Ordinance 582 Amend Merit Plan – First Reading

The purpose of this proposed change is update and conform revisions to the Merit Plan with Part II, Chapter 2, Article V, Merit System, of the Claremont City Code in order to eliminate inconsistencies between the Code provisions and the Merit Plan.

Enactment of this Ordinance will: 1) conform the Code with the Merit Plan by removing inconsistencies between the two enactments; and 2) update the Code by revising provisions to comply with the Fair Labor Standards Act (FLSA) with regards to employee classification.

This change was requested by the City Manager.

Councilor O’Hearne asked to move this to the next meeting as the Personnel Advisory Board recommendation was not included in the Council packet. Councilors agreed.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to move this item to the next meeting on the 24th.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Boston Post Cane Discussion

Mr. Morris said this has been brought up a couple times since he has been here and he has received a call from a citizen asking if the City would be moving forward with the Boston Post Cane application process.

Councilors agreed this process should be handled by the City and that it be monitored annually.

Ms. Walter said money needs to be put into the budget to purchase more canes as we only have one cane left.

Council Goals Discussion

Mayor Lovett said only four Councilors gave their top three goals. She asked for input from the other Councilors; there was none. She said from those four, stabilizing the tax rate was a focus, housing/blight, infrastructure, energy, and environmental issues were brought up.

Councilor Matteau said at that meeting, Council had asked Mr. Morris to reach out to former Councilor Kier to see if she could send the minutes from the strategic meeting. Mr. Morris said he reached out to her twice, but hasn't received a response. He can call her.

Assistant Mayor Damren liked the category of infrastructure as it allows the broadest term to include roads and what's underneath the roads.

Mayor Lovett will work with what we have. She said it would be nice to have three focus areas from each Councilor.

Funds Transfer (Compensation)

Mr. Morris said he had sent a spreadsheet to the Council of the total cost with retroactive pay. Without adjusting the salary scales for FY2021, the cost would be \$36,007.20 and a funds transfer of \$14,832.44 would be needed. There are eight Merit Plan employees whose salaries are maxed out. If the salary scale is adjusted and retro'd back to January, the total cost would be \$44,746.95 and the funds transfer would be \$19,946.08. If the pay increase starts March 1st, the cost for the rest of this year would be \$23,980.80 with a funds transfer of \$8,015.01 and that is without adjusting the salary scales. If the salary scales were adjusted, the amount would be \$29,801.47 and the funds transfer would be \$9,497.94. His proposal (if the salary scales are adjusted) is to give Merit Plan employees a 2.5% increase.

Councilor Koloski said he is a Call Firefighter, so he recused himself.

Mr. Morris said the reason Call Firefighters have not gotten raises is because of the way they are listed in the Merit Plan. They get State of NH minimum wage. If Council wants to give Call Firefighters a raise, a change would have to be made to the salary scale.

Councilor Contois talked about the compensation study and that if it were fully implemented, some employees would make over \$100,000 a year. He does not support it.

Councilor Matteau and Assistant Mayor Damren said the 2.5% increase was not tied to the compensation study. This is to create equity for all the employee groups.

Councilor O'Hearne asked about money being placed in last year's budget for raises. Mr. Morris said there was about \$30,000. Also, there was about \$90,000 in the 417 account for the compensation study. Councilor O'Hearne was concerned about downshifting from the state.

Mr. Morris said there is not enough money throughout the budget to give all Merit Plan employees raises. It would be spotty.

A motion was made by Councilor Matteau and seconded by Councilor Sweetser to grant the 2.5% raises for Merit Plan employees effective March 1 without adjusting the salary scales and to approve the \$8,015 transfer of funds.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - abstain

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-1, with 1 abstain.

Councilor Koloski expressed his displeasure that this was not opened to the public before the vote.

Councilor Girard would like the Call Firefighters to be looked because theirs is set at the minimum wage.

Assistant Mayor Damren would like to see what the scale looks like.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Matteau asked for an update regarding the Rail Trail and the property on Washington Street, and perhaps a copy of the letter from the agency about whether or not it would be permitted.

Councilor Matteau asked to discuss compliance of 91-A and minutes of meetings.

Mr. Morris said the City has contacted the Federal DOT (Department of Transportation). The City has received a letter. The Federal DOT has referred this to the State DOT for final determination. The City is working with the state. This is expected to be done within a month. He will send the Council a copy of the Federal DOT letter.

Councilor O’Hearne said Donald Fontaine, Sr., passed away. He was 99 years old. He suggested the Council send its condolences as he was a long serving County Commissioner and his son retired from the Claremont Police Department. Councilor Matteau agreed.

Councilor Contois asked when the new fire truck will be coming. Mr. Morris said he can get that information to the Council.

Councilor Contois asked about the Topstone building. Mr. Morris said more testing was done across the street at Sweet Fire BBQ and they have gotten higher numbers there, which is showing that it is probably not coming from the Topstone property, but is probably coming from farther up, and NH DES is working on that.

Councilor Koloski would like to publicly discuss the decision to have all Department Heads at the Council meeting. If they are not needed, it is not fair that they have to be in attendance.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

Moved to February 24, 2020, Council meeting.

ADJOURNMENT

At 9:39 p.m., a motion was made by Councilor Matteau and seconded by Councilor O’Hearne to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council